IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.103
CAA-118(ND)/2022

IN THE MATTER OF:
M/s. Lucideus Tech Pvt Ltd. AND Safe Technology India Pvt Ltd.
.... APPLICANT/PETITIONER

SECTION
U/s 230-232

Order delivered on 15.12.2022

CORAM:
SHRI ATUL CHATURVEDI
MEMBER (TECHNICAL)

SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

PRESENT:
For the Applicant : Adv. Rishabh Sachdeva for Applicant Companies
For the Respondent :

ORDER

This is a second motion application.

Mr. Rishabh Sachdeva, Ld. Counsel appearing for the Petitioner has submitted that vide order dated 24.11.2022, orders in the First Motion petition have been passed by this Tribunal and the meetings of the shareholders and Unsecured Creditors of the Applicant Companies were dispensed. It was also observed that since there are no secured creditors in all the Applicant Companies, there is no need for obtaining the NOC/consent and there is no requirement of calling any meeting.

The Petitioner in this petition seeks the following prayers:

A. Issue of Notices to be served on the Regional Director- Northern Region, Registrar of Companies - NCT of Delhi and Haryana, Official Liquidator and Income Tax Authority;

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— Sd —

B. Direct that the said Scheme of Amalgamation may be sanctioned by the Hon'ble Tribunal as to be binding on all Equity Shareholders. Secured Creditors, Unsecured Creditors, employees and other concerned stake holders of both the Petitioner companies with effect from the Appointed Date:

C. Issue appropriate directions to publish the notice of the Petition:

D. The liberty be reserved to the Petitioner Companies and to all other persons interested in the Petition to apply to this Hon'ble Tribunal herein as and when occasion may arise for any direction that may be necessary:

E. Pass such other order(s) as this Hon'ble National Company Law Tribunal may deem fit and proper in the facts and circumstances of the present case.

Having heard the submissions made by Ld. Counsel, we direct the Petitioner to issue notices to Regional Director- Northern Region, Registrar of Companies - NCT of Delhi and Haryana, Official Liquidator and Income Tax Authority.

We also direct the Petitioner to publish in two newspapers Business Standards (Hindi and English) Delhi Edition and file proof of service and affidavit of service within 45 days.

List on **13.02.2023.**

— Sd —

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

— Sd —

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

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